

## ANONYMUS.

In an assault, battery and wounding, the plaintiff after verdict moved the Court for an encrease of damages ; the Court said they could not do it, if the word *maihem-avit* was not in the declaration.

## CLARK'S CASE.

3 Keb. 764, 799, 811. *Antea* 302. 2 Lev. 200. 2 Salk. 426.

Upon an *habeas corpus* to the Mayor, &c. of London, a custom was returned to disfranchise, and commit a freeman for speaking opprobrious words of an alderman.

The Court said, they might fine in such case, but the other custom would not hold, notwithstanding the Act of Confirmation of their Customs, which does not extend to unreasonable customs.

## [328] TERMINO PASCHÆ, ANNO 30 CAR. II. IN BANCO REGIS.

## ANONYMUS.

*Antea* 93. 2 Mod. 66. 2 Vent. 29. 1 Show. 350.

In trespass of battery by baron and feme, for beating of them both.

Upon not guilty, the verdict was for so much damage for beating the husband, and so much for beating of the wife.

The Court said upon a motion to arrest the judgment, that the plaintiff might release the damages for beating of himself, and take judgment for the other.

THE KING *versus* MEAD.

An information was brought against him, upon the statute of 17 Car. 2, which restrains Non-conformist ministers from inhabiting within five miles of any city, town-corporate or borough, that sends burgesses to Parliament, &c.

After verdict for the King, it was moved in arrest of judgment.

First, that the place of his habitation was alledged to be within five miles of London ; but it was said, that London sent burgesses to Parliament, which not being in the record, the Judges were not to take knowledge of. Sed non allocatur ;

For the last words of sending burgesses to Parliament shall be referred only to boroughs ; and therefore the Act restrains them from dwelling in corporations, &c. tho' such corporations as send no burgesses.

Secondly, it is alledged, that the town where the defendant dwells is within five miles ; but not that the place of his habitation in that town was so, and therefore may be intended to be more remote.

Thirdly, there wants *vi & armis*. Sed non allocatur, sed *judicium pro Rege*.

## [329] TERMINO SANCTÆ TRINITATIS, ANNO 30 CAR. II. IN BANCO REGIS.

*Antea* 295. *Post*, 354.

Memorandum, This term Sir Richard Rainsford was removed, and Sir William Scroggs, one of the Justices of the Common Pleas, was made Lord Chief Justice of the King's Bench.

HOVEL *versus* REYNOLDS.

T. Jones 109.

In trespass for fishing in his several piscary, and for taking twenty bushels of oysters there such a day, *continuo* piscationem prædictam from the said day to the time of the action brought.